

Unlimited and Complex” (“Appearance Procedures”) and “Guidelines for Remote Appearances” (“Guidelines”) also available at <https://www.occourts.org/media-relations/aci.html> will be strictly enforced. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

PUBLIC ACCESS: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

**TENTATIVE RULINGS
September 21, 2023**

#	Case Name	Tentative
1	AFC Cal, LLC vs. Pascual 2020-01168103	Plaintiff AFC CAL, LLC Motion To Amend and Correct Judgment Plaintiff AFC CAL, LLC’s motion to amend and correct judgment is GRANTED on the condition that the moving Plaintiff can establish at or before the hearing that the original notice of motion, motion and supporting documents were properly served on Defendant Gabriel Marcelo Pascual dba Central Auto Wholesale on July 12, 2023. According to the proof of service attached to the motion, on July 12, 2023, the notice, motion and supporting documents were served on the interested parties by mail “as stated in the attached mailing list.” Unfortunately, no mailing list was attached. Thus, the court cannot tell whether service was proper. The court has power either on motion of a party or sua sponte to “correct clerical mistakes in its judgment . . . so as to conform to the judgment . . . directed.” (Code Civ. Proc., § 473(d); APRI Ins. Co. v. Super. Ct. (1999) 76 Cal.App.4th 176, 185; see also In re Marriage of Boblitt (2014) 223 Cal.App.4th 104, 1026 [citing Witkin Cal. Proc. (5th ed. 2008) Judgment, §67 for the proposition that “[a] court of general jurisdiction has the power, after final judgment, and regardless of lapse of time, to correct clerical errors or misprisons on its records, whether made by the clerk, counsel, or

		the court itself, so that the records will conform to and speak the truth”].) Where a “clerical error” is shown, the judgment is corrected nunc pro tunc— i.e., the correction dates back to when the judgment was entered. (Ames v. Paley (2001) 89 Cal.App.4th 668, 673; Bell v. Farmers Ins. Exch. (2006) 135 Cal.App.4th 1138, 1144.) Here, Plaintiff moves to amend or correct the judgment to reflect the correct total amount of judgment. In essence, the total judgment amount was a mathematical mistake and the correct total amount should be \$149,857.67, not \$135,531.67. The incorrect total is nothing more than a clerical mistake and therefore, the motion should be granted, provided Plaintiff can show proper service of the motion on Defendant. If Plaintiff cannot establish proper service on Defendant Gabriel Marcelo Pascual dba Central Auto Wholesale on July 12, 2023, the motion is CONTINUED to 11/2/23 at 2PM. Plaintiff is ORDERED to give notice of the continued hearing date, as well as the original notice, motion and all supporting documents within 5 days of this ruling and file a POS re: same not later than 7 days before the continued hearing.
2	American Express National Bank vs. White 2019-01086058	Plaintiff American Express National Bank Motion to Vacate Plaintiff American Express National Bank’s unopposed Motion to Vacate The Conditional Dismissal and for Entry of Judgment Pursuant to CCP 664.6 is GRANTED. In January of 2020, the parties entered in a binding Settlement Agreement which was filed with the court and the court dismissed the case, while retaining jurisdiction pursuant to CCP § 664.6. (ROA 47 & 45; Decl. of Dyle, Ex. A.) Pursuant to the Stipulation, Defendant agreed that she owed \$27,465.64 to Defendant. Should she default on the payments set forth in the Stipulation, Plaintiff was entitled to judgment against Defendant in said amount in addition to costs.